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PART II

Statutory Notifications (S. R. O.)

GOVERNMENT OF PAKISTAN

MINISTRY OF DEFENCE

NOTIFICATION

Rawalpindi, the 26th May, 2015

S.R.O. 546(I)/2015.—The following draft bye-laws, for regulating parking of vehicles in Clifton Cantonment proposed to be made by the Cantonment Board, Clifton in exercise of the powers conferred by clause (18) of section 282 of the Cantonments Act, 1924 (II of 1924) read with section 283 thereof are hereby published for information of all persons likely to be affected thereby and, as required by sub-section (1) of section 284 of the said Act, notice is hereby given that suggestion or objections thereon, if any, may be sent to the Cantonment Board, Clifton within fifteen days of publication of this notification.

Any suggestions or objections that may be received before expiry of the said period will be considered by the Cantonment Board, Clifton, namely:-

(2101)

DRAFT BYE-LAWS

1. **Short Title and Commencement.-** (1) These bye-laws may be called the Cantonment Board Clifton (Parking of Vehicles) Bye-laws, 2015.

(2) They shall come into force at once.

2. **Definitions.-** (I) Unless there is anything repugnant in the subject or context,-

- (a) "Act" means the Cantonments Act, 1924 (II of 1924);
- (b) "Board" means the Cantonment Board Clifton;
- (c) "Executive Officer" means the Cantonment Executive Officer of Clifton Cantonment;
- (d) "authorized Place" means any place including a road side, street berm, market, ground and any open space where the Board authorizes parking;
- (e) "book" means book of receipts which are issued to individuals parking a vehicle at authorized place;
- (f) "licensee" means an authorized person licensed for collection rights of parking fees on behalf of Board; and
- (g) "parking" means stationing a vehicle at an authorized place.

(2) All words, phrases and expressions, used but not defined in these bye-laws, shall have the same meaning as is assigned to them in the Act.

3. **Parking.-** (I) No person shall park vehicle at any place other than the authorized place in Clifton Cantonment:

Provided that this sub bye-laws shall not apply to the residential and commercial buildings having specifically reserved parking spaces as approved in their building plans.

(2) The Board may approve a general scheme for parking of vehicles wherein the positioning of vehicles and number of rows may be determined subject to the following conditions namely:-

- (a) there shall be reserved parking bays for physically handicapped located at a suitable location with ramps to the footpath.

- (b) the parking attendants shall wear a uniform with the emblem of the Board and shall have proper identification and name tags to prevent spurious operators.
- (c) the parking hours shall be regulated so as to discourage long term parking in busy areas. The normal parking validity shall be between three to six hours. In order to keep the parking facility open for maximum number of people, parking beyond six hours may be subject to a special fee of one thousand rupees.

(3) Any person who intends to park vehicle at an authorized place shall pay to the Board, or its licensee, a fee as set out in column (3) of the table below applicable to the vehicles specified in column (2) thereof, namely:-

TABLE

S.No.	Type of Vehicle	Parking Fee
(1)	(2)	(3)
1.	Bus, Coach, Truck, etc (HTV)	Rs.40
2.	Car, Jeep, Taxi, Pickup, etc. (LTV)	Rs.20
3.	Motorcycle, Scooter, Rickshaw, etc.	Rs.10

(4) The payment of parking fee under sub bye-laws (3) is ordinarily for the purpose of provision of parking services to the residents of the Clifton Cantonment including provision of parking spaces ensuring that parking is done legally at authorized places and that it does not negatively impact the smooth flow of traffic. Vehicles which are double or triple or more than that parked will be immediately towed away to ensure there is no impediment to smooth movement of traffic. Likewise, the unauthorized vehicles may be clamped on spot. In both the cases, the towed or clamped vehicles are to be released against fine of two hundred Rupees.

(5) The charged parking shall obligate the Board to maintain the parking spaces' sanitation and general upkeep including provision of road markings, sign boards and street lights.

(6) The sign boards shall clearly and legibly display the timings and the rates of parking. The sign boards shall have working contact numbers of the relevant officials of the Board, in case a complaint is to be lodged.

(7) A part of the fund collected from charged parking shall be reinvested in the parking area to make the citizens feel good about the facilities they are provided with.

(8) The Board may collect the parking fee at authorized place either departmentally or through a licensee. A licensee may be the one who offers highest bid in a public auction and as such may be awarded the contract for a term of one year or for any other term as decided by the Board.

(9) The Board may enter into a contract with the licensee and the terms of contract shall be binding on both the parties.

(10) The Board or its licensee, if any shall collect the fees on prescribed receipt book as approved by the Executive Officer which shall contain three parts of parking ticket, one for owner, second for inside the vehicle and third for the parking fee collector to ensure safety and security of the parked vehicle. The parking ticket shall contain contact details for lodging of complaint:

Provided that the parking receipt shall be valid for multiple use on the same day in the same parking area within the same time duration against which the receipt is issued.

(11) Vehicles of the Federal Government, Provincial Government, Armed Forces and Cantonment Board shall not be liable to payment parking fees.

(12) The Board shall be authorized to invoke penalty clauses of the contract with the licensee to ensure that the licensee charges only prescribed fees and does not violate the scheme and regulation of parking approved under these bye-laws.

(13) Any person who contravenes any of the provisions of these bye-laws shall be punishable with fine which may extend to one hundred rupees and, in the case of a continuing contravention, with an additional fine which may extend to twenty rupees for every day during which such contravention continues.

[No. 38/4/P&MA/ML&C/2015/4/5/D-6(A-VI)/2015.]

HAMEEDULLAH MALIK,
Section Officer.